

SENATE No. 1749

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to emergency response in an active shooter or hostile event situation.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>2/18/2025</i>

SENATE No. 1749

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 1749) of Patrick M. O'Connor and Steven George Xiarhos for legislation relative to emergency response in an active shooter or hostile event situation. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1572 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to emergency response in an active shooter or hostile event situation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 6A of the General Laws is hereby amended by inserting after section 18V the
2 following section:-

3 Section 18W. (a) Definitions

4 Active Shooter/Hostile Events Response (ASHER) Program: A community-based
5 approach to preparedness, mitigation, response, and recovery from an ASHER incident,
6 including public and private partnerships, emergency management, the medical community,
7 emergency responders, and the public.

8 Department: The Executive Office of Public Safety Secretary; the Secretary of Public
9 Safety

(b) The department shall adopt the National Fire Protection Association's NFPA 3000 as the standard guideline for active shooter or hostile event situations in the Commonwealth.

(c) The department, in conjunction with state, county, municipal, and regional law enforcement, fire services, emergency medical services, and emergency response agencies, develop and implement standard training requirements to achieve an integrated preparedness, response, and recovery for active shooter or hostile event situations.

(d) There shall be within the department an Active Shooter or Hostile Event Situation (ASHER) Executive Council, consisting of the Secretary or their designee; Fire Marshall or their designee; the Colonel of the State Police or their designee, a medical director appointed by the OEMS medical director; the director of the office of preparedness and emergency management at the department of public health, or a designee; and 10 members appointed by the Secretary, or their designees, as follows: 1 each from the Professional Fire Fighters of Massachusetts, the Massachusetts Ambulance Association, the Fire Chiefs Association of Massachusetts, the International Association of EMTs and Paramedics, the Massachusetts Chiefs of Police, the Massachusetts Coalition of Police, the State Police Association of Massachusetts, a representative of the state 911 department and 2 members at large.

The Secretary shall appoint the chair of the executive council. Each appointed member of the executive council shall serve a term of 3 years, or until a successor is appointed and qualified. At least one-half of the total appointed members of executive council shall constitute a quorum for the transaction of business. Appointees shall serve without compensation.

(e) The executive council shall meet, at a minimum, once quarterly, and shall assist in coordinating the efforts of all persons and agencies in the state concerned with the emergency

response in an active shooter or hostile event situation, and shall render advice on the development of the emergency response in an active shooter or hostile event situation.

The executive council, in consultation with the department, shall submit an annual report to the Secretary and to the Clerks of the House of Representatives and Senate, on or before June 30.

(f) It shall be the duty of the department to plan, guide, assist, coordinate and regulate the development of an emergency response plan in an active shooter or hostile event situation.

The department shall be the lead state agency for development and recommendations on emergency response to an active shooter or hostile event situation in the Commonwealth. The department shall have the authority to:

(1) direct and coordinate a program for planning, developing, maintaining, expanding, improving and upgrading emergency response in an active shooter or hostile event situation.

(2) establish minimum standards and criteria for all elements of emergency response in an active shooter or hostile event situation, taking into consideration relevant standards and criteria developed or adopted by nationally recognized agencies or organizations, and the recommendations of interested parties.

(3) define and approve the minimum standards for training programs on emergency response in an active shooter or hostile event situation in this state.